

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

9. NICOLE THOMAS-FRANCIS V. MATHEW FRANCIS

PFL20180529

On July 14, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The RFO was originally filed ex parte and as such, the court made temporary orders, referred the parties to Child Custody Recommending Counseling (CCRC) and set a hearing on the regular law and motion calendar.

Respondent filed and served his Responsive Declaration to Request for Order on July 22nd.

The parties attended CCRC on August 4th but they were unable to reach any agreements. A report with recommendations was prepared on September 2nd and mailed to the parties on September 3rd.

On September 10, 2026, Petitioner filed and served a supplemental declaration.

Petitioner is requesting sole legal and sole physical custody of the minor pending completion of the Washington CPS investigation and any California CPS investigation. She asks that the court make any additional orders as necessary for the health, safety, and best interests of the minor. Finally, she asks the court to reserve her right to argue for attorney's fees pursuant to Family Code § 3020.

Respondent opposes Petitioner's requests and asks the court to award him sole legal and sole physical custody. He further asks that Petitioner be ordered to undergo a 730 evaluation. He is also requesting full disclosure of all medical and academic records of the minor, appointment of Minor's Counsel, an order for the parties to utilize Our Family Wizard and a no-contact order between Xander Julian Thomas and the minor.

First and foremost, the request for attorney's fees is denied without prejudice. Petitioner's reliance on Family Code § 3020 is misplaced as Section 3020 does not have a mechanism for attorney's fees. To the extent her request was based on Section 2030, the request is also denied. "[T]o request attorney's fees and costs, a party must complete, file and serve the following documents:...Request for Attorney's Fees and Costs Attachment (form FL-319) or a comparable declaration that addresses the factors covered in form FL-319...[and a] personal declaration in support of the request for attorney's fees and costs, either using Supporting Declaration for Attorney's Fees and Costs Attachment (form FL-158) or a comparable declaration that addresses the factors covered in form FL-158..." Cal. Rule of Ct. 5.427(b)(1). Petitioner has not filed either a form FL-319, an FL-158, or a declaration covering the necessary factors for the court to rule on a request for attorney's

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fees. Additionally, the most recent Income and Expense Declaration the court has on file for Petitioner is from 2018. For these reasons, Petitioner's request for attorney's fees is denied without prejudice.

Turning to the custody and visitation orders, the court does find that it would be helpful to appoint Minor's Counsel in this matter. As such, Aaron Dosh is appointed as Minor's Counsel.

The request for a 730 evaluation is also granted. Respondent shall provide Petitioner with the names of three evaluators no later than September 24, 2026. Petitioner shall select one of the evaluators and notify Respondent of her selection no later than October 1, 2026. If Petitioner does not provide her selection by that date then Respondent may select any one of the three. Respondent shall bear the cost of the evaluation subject to reallocation.

The parties are ordered to utilize Our Family Wizard for all communications regarding the minor commencing forthwith.

Respondent's request for a no-contact order between Xander Julian Thomas and the minor is denied. Respondent has failed to provide any actual evidence to support his contention that such an order would be in the best interests of the minor.

The parties are re-referred to CCRC on Wednesday, November 25th at 9:00 am. Respondent is ordered to make the minor available to speak with CCRC.

A review hearing on this matter is set for Thursday, February 25th, 2027, at 8:30 am in Department 5 to update the court on the status of the 730 evaluation and to review the CCRC recommendations. Minor's Counsel is to file a declaration with the court regarding recommendations for custody moving forward. Any supplemental declarations filed by the parties are to be filed and served no later than 10 days prior to the hearing date.

All prior orders not in conflict with this order remain in full force and effect pending the review hearing.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #9: PETITIONER'S REQUEST FOR ATTORNEY'S FEES IS DENIED WITHOUT PREJUDICE.

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AARON DOSH IS APPOINTED AS MINOR'S COUNSEL.

THE REQUEST FOR A 730 EVALUATION IS ALSO GRANTED. RESPONDENT SHALL PROVIDE PETITIONER WITH THE NAMES OF THREE EVALUATORS NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE EVALUATORS AND NOTIFY RESPONDENT OF HER SELECTION NO LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT PROVIDE HER SELECTION BY THAT DATE THEN RESPONDENT MAY SELECT ANY ONE OF THE THREE. RESPONDENT SHALL BEAR THE COST OF THE EVALUATION SUBJECT TO REALLOCATION.

THE PARTIES ARE ORDERED TO UTILIZE OUR FAMILY WIZARD FOR ALL COMMUNICATIONS REGARDING THE MINOR COMMENCING FORTHWITH.

RESPONDENT'S REQUEST FOR A NO-CONTACT ORDER BETWEEN XANDER JULIAN THOMAS AND THE MINOR IS DENIED.

THE PARTIES ARE RE-REFERRED TO CCRC ON WEDNESDAY, NOVEMBER 25TH AT 9:00 AM. RESPONDENT IS ORDERED TO MAKE THE MINOR AVAILABLE TO SPEAK WITH CCRC.

A REVIEW HEARING ON THIS MATTER IS SET FOR THURSDAY, FEBRUARY 25TH, 2027, AT 8:30 AM IN DEPARTMENT 5 TO UPDATE THE COURT ON THE STATUS OF THE 730 EVALUATION AND TO REVIEW THE CCRC RECOMMENDATIONS. MINOR'S COUNSEL IS TO FILE A DECLARATION WITH THE COURT REGARDING RECOMMENDATIONS FOR CUSTODY MOVING FORWARD. ANY SUPPLEMENTAL DECLARATIONS FILED BY THE PARTIES ARE TO BE FILED AND SERVED NO LATER THAN 10 DAYS PRIOR TO THE HEARING DATE.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT PENDING THE REVIEW HEARING.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

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LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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10. MICHAEL BENJAMIN WOODARD V. AMBER LEIGH ASHLEY

25FL0885

On March 6, 2026, Respondent filed a Request for Order (RFO) requesting child and spousal support as well as Family Code § 2030 attorney's fees. The parties appeared for the hearing on April 16th at which time the parties reached agreements regarding support. The court adopted those agreements and set the matter for a review hearing on the present date. The court reserved jurisdiction over support back to May 1, 2026 and ordered both parties to file updated Income and Expense Declarations and supplemental declarations no later than 10 days prior to the hearing date.

Neither party has filed a supplemental declaration or an updated Income and Expense Declaration. Accordingly, the court infers that the review hearing is no longer needed and the matter is dropped from calendar.

TENTATIVE RULING #10: THIS MATTER IS DROPPED FROM CALENDAR.